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CLERK OF SUPERIOR COURT
BY _____
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9
10 **IN THE SUPERIOR COURT OF THE STATE OF ARIZONA**
11 **IN AND FOR THE COUNTY OF COCHISE**
12

13 ANNE CARL, a married woman,

14 Plaintiff,

15 v.

16 SANDY RUSSELL, as a candidate for Cochise
17 County Superior Court Judge, Division 5; LISA
18 MARRA, Director of the Cochise County
19 Elections Department; DAVID STEVENS,
20 Cochise County Recorder; COCHISE COUNTY
21 BOARD OF SUPERVISORS,

22 Defendants

No. CV 2020 00428

**COMPLAINT FOR SPECIAL
ACTION/INJUNCTIVE RELIEF**

**(Challenge to Nomination
Qualifications pursuant to
A.R.S. §16-351(B));
Application for
Preliminary
Injunctive Relief and
Order to Show Cause)**

Division 5, Judge Conlogue

23 The Plaintiff, Anne Carl, for her Complaint for Special Action/Preliminary Injunctive
24 Relief against Defendants herein, states and alleges as follows:

25 **I. PARTIES, JURISDICTION, AND VENUE.**

26 1. Plaintiff is a resident and qualified elector of Cochise County, Arizona, and is
27 entitled to file this nomination qualifications challenge under Arizona Revised Statute
28

1 (A.R.S.) §16-351. Plaintiff is an attorney licensed in the State of Arizona who is appearing in
2 this matter on her own behalf, as a *Pro Se* litigant, and not as an advocate for any other party.
3 Plaintiff is also a candidate for election in the same November 3rd 2020 race for public office
4 as Defendant SANDY RUSSELL, and Plaintiff anticipates that she may be required to appear
5 as a witness on her own behalf in this proceeding.
6

7 2. Defendant SANDY RUSSELL (hereinafter “Defendant Russell”), a resident of
8 Cochise County, Arizona, is the candidate whose qualifications are the subject of this
9 challenge (hereinafter “the qualifications”), and is named in this action pursuant to A.R.S.
10 §16-351(B). On information and belief, Defendant RUSSELL may have used several aliases
11 in connection with the actions at issue here, including, but not limited to Sandra Russell,
12 Sandra Finch and/or Sandra Lekan. The actions taken by Defendant Russell, whether done
13 through her own name or through aliases, are included here.
14

15 3. Defendant LISA MARRA is named in her official capacity as the Director of
16 the Elections Department of Cochise County, AZ, pursuant to A.R.S. §16-351(C)(2). Along
17 with the Cochise County Recorder and Cochise County Board of Supervisors, it is her
18 responsibility to provide the correct slate of qualified candidate names for printing on the
19 ballots for the 2020 General Election in Cochise County.
20

21 4. Defendant DAVID STEVENS is named in his official capacity as the
22 Recorder of Cochise County, AZ, pursuant to A.R.S. §16-351(C)(3).
23

24 5. Defendant COCHISE COUNTY BOARD OF SUPERVISORS (hereinafter
25 “BOS”) is named in its official capacity and is a party to this action pursuant to A.R.S. §16-
26 351(C)(3).
27
28

1 6. Jurisdiction is proper before this Court pursuant to A.R.S. §§16-351 and 12-
2 123, the Arizona Constitution, Article VI, § 14, and 16 A. R. S. Rules of Procedure for
3 Special Actions, Rule 4(b). This is timely, because Plaintiff is alleging fraud, pursuant *but not*
4 *limited* to 16 A. R. S. Rules of Civil Procedure (hereinafter "Rules Civ. Proc."), Rule 9(b),
5 Fraud and forgery, pursuant *but not limited* to A.R.S. §13-2002(A)(3), presenting an
6 instrument containing false information; see also *Moreno v. Jones*, 139 P.3d 612, 615, 213
7 Ariz. 94 (Ariz., 2006) ("Although A.R.S. § 16-351(A) provides short time limits for
8 challenges to nomination petitions, the statute does not categorically preclude the filing of a
9 Rule 60(c) motion [due to fraud, misrepresentation or other misconduct of an adverse party if
10 done within a reasonable time from entry of the order or judgment.]")

11
12
13 7. Defendants have caused events to occur in Cochise County, Arizona, out of
14 which Plaintiff's claims arise.

15 8. Venue is proper in this Court under A.R.S. § 12-401.

16 9. The injunctive relief requested is applicable to all parties and all officers,
17 agents, servants, employees, and others acting in concert or in participation with the named
18 Defendants on the matters raised in this Complaint.
19

20 **II. COUNT ONE – DEFENDANT RUSSELL IS NOT QUALIFIED TO BE A**
21 **CANDIDATE FOR SUPERIOR COURT JUDGE IN ARIZONA BECAUSE SHE**
22 **WILL NOT HAVE BEEN A RESIDENT IN ARIZONA FOR AT LEAST FIVE**
23 **YEARS BEFORE TAKING OFFICE.**

24 10. This first claim pertains to Defendant RUSSELL's lack of Superior Court
25 judicial qualifications. Allegations of the foregoing paragraphs 1 through 9 are hereby
26 incorporated by reference.
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28

1 11. Under A.R.S. §16-351(B), “[a]ny elector may challenge a candidate for any
2 reason relating to qualifications for the office sought as prescribed by law,
3 including...residency...”

4 12. Article VII, Section 15 of the Arizona Constitution provides that “Every person
5 *elected* or appointed to any elective office of trust or profit under the authority of the state, or
6 any political division or any municipality thereof, shall be a *qualified* elector of the political
7 division or municipality in which such person shall be elected.” (Emphasis added.)

8 13. Current Superior Court judge qualifications are specifically governed by
9 Article VI, Section 22 of the Arizona Constitution, which requires in part that a judge be at
10 least thirty years old, of good moral character, and...*a resident of Arizona for at least five*
11 *years before taking office.*

12 14. Superior Court judge qualification requirements were established at the time of
13 statehood, when the Arizona Constitution only required Arizona residency “for *two* years next
14 preceding [a superior court judge’s] election.” See [https://cctl.asu.edu/arizona-](https://cctl.asu.edu/arizona-constitution/1912-edition)
15 [constitution/1912-edition](https://cctl.asu.edu/arizona-constitution/1912-edition), Article VI Section 13 of Arizona Constitution’s 1912-edition,
16 which suggests that an Arizona judicial candidate’s Arizona residency has been considered
17 more rather than less important over time.

18 15. “An individual has **only one** residence for purposes of [all of Title 16, which
19 would include any and all sections governing candidate residency qualifications].” A.R.S. §
20 16-101(B)(emphasis added).

21 16. Georgia’s rules for determining residence vis-à-vis voting rights are similar to
22 Arizona’s in that they require that one be a legal resident of **Georgia** and **only Georgia** to
23 vote in Georgia. See the Official Code of Georgia Annotated (O.C.G.A.) Chapter 2, Art. 6 §
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1 21-2-217. Article II, Section 1, Paragraph II of the Georgia Constitution provides: "Right to
2 register and vote. Every person who is ... a **resident** of **Georgia** as defined by law... shall be
3 entitled to vote at any [GA] election by the people..." (Emphasis added.)

4
5 17. Under O.C.G.A. § 21-2-217(a)(2), "A person shall not be considered to have
6 lost such person's residence who leaves [her] home and goes into another state...for
7 temporary purposes only, with the intention of returning, **unless [she] shall register to vote**
8 or perform other acts indicating a desire to change such person's citizenship and residence."
9 (Emphasis added.)

10
11 18. Under O.C.G.A. § 21-2-217(a)(4), "If a person removes to another state with
12 the intention of making it [her] residence, [she] *shall be considered to have lost* [her]
13 **residence** in [Georgia]." (Emphasis added.)

14
15 19. Likewise under O.C.G.A. § 21-2-217(a)(5), "If a person removes to another
16 state with the intention of remaining there an indefinite time and making such state [her] place
17 of residence, [she] *shall be considered to have lost* [her] **residence** in [Georgia],
18 notwithstanding that [she] may intend to return at some indefinite future period." (Emphasis
19 added.)

20
21 20. Similarly, under A.R.S. §16-593(A)(5), "If a person removes to another state
22 with the intention of making it his residence, he *loses* his residence in this state." (Emphasis
23 added.)

24
25 21. And under A.R.S. §16-593(A)(6), "If a person removes to another state **with**
26 **the intention of remaining there for an indefinite time**, and of making the place his present
27 residence, he *loses* his residence in *this* state, *even though* he has an intention of returning at
28 some future period." (Emphasis added.)

1 22. On or about May 20, 2016, Defendant RUSSELL early voted in Georgia's
2 official statewide election. (EXHIBIT 1, Facebook admission.) As she did, she confirmed that
3 her legal residence was GA at that time, regardless of whether she intended to move
4 imminently to Arizona at that time or not. (EXHIBIT 22, 5-19-16 post to Chris.)
5

6 23. Under O.C.G.A. § 21-2-217(a)(7), "The residence for voting purposes of a
7 person shall not be required to be the same as the residence for voting purposes of his or her
8 spouse."
9

10 24. Under O.C.G.A. § 21-2-217(a)(9), "The mere intention to acquire a new
11 residence, without the fact of removal, shall avail nothing; neither shall the fact of removal
12 without the intention."
13

14 25. Defendant RUSSELL registered to vote in Arizona on October 6, 2016, just
15 before the General Election. It was the very first Arizona election in which she voted.
16 (EXHIBIT 2, certified copy of AZ voting records.)
17

18 26. Defendant RUSSELL's legal residency in other words changed from Georgia
19 to Arizona *only after* she had voted in Georgia in 2016 *and then moved* to Arizona to begin
20 exercising all the rights of Arizona citizenship. Under O.C.G.A. § 21-2-217(a)(13), "If a
21 person goes into another state **and while there** exercises the right of a citizen by **voting**, such
22 person shall be considered to have **lost** such person's residence in [Georgia]."
23

24 27. On information and belief, Defendant RUSSELL was living in Georgia
25 through the first part of 2016, while coparenting her (then-toddler aged or young) child in the
26 Atlanta area with that child's Atlanta-based father. (See EXHIBIT 3). This was while working
27 in her own firm and/or as an employee and local "agent" for The Russell's Law Firm's bi-
28 coastal (Georgia) office. (See EXHIBITS 4 and 5)

1 28. Defendant RUSSELL, by her own recent account, had owned her own building
2 in Atlanta, and was successful there. She “could have easily stayed” there. (EXHIBIT 3). In
3 fact, she did stay. A while. And she considered Georgia “home” (see EXHIBITs 6 and 7) until
4 just before May 22, 2016, when she moved to her new “home” in Arizona. (See EXHIBIT 8).

5
6 29. On information and belief, her intention to someday permanently move from
7 her established home and work in Georgia, and her young child’s home and that child’s father
8 in Georgia, appears to have come only after new marriage and after “it came time for [her and
9 her then-husband] to decide which one of [them] should move.” (EXHIBIT 3). But intention
10 alone is irrelevant. *See* O.C.G.A. § 21-2-217(a)(2)(4)&(5).

11
12 30. Some roots remain in Georgia. She evidently continues to share parenting
13 responsibilities with her still young child’s Atlanta-based father (*id.*), and continues to be
14 listed as her husband’s satellite law firm’s local (GA) “agent.” (EXHIBIT 5).

15 31. To qualify as judge of Superior Court in Arizona starting on January 1, 2021,
16 one must have resided in Arizona from at least January 1st, 2016, i.e., for a full five years
17 immediately before becoming judge.

18
19 32. Defendant RUSSELL could not have legally resided for the purposes of voting
20 in both Arizona and Georgia at the same time in 2016 and earlier, so her claims about being
21 an AZ resident for seven years, which were made in her “Nomination Paper [and] Declaration
22 of Qualification” (EXHIBIT 9, hereinafter “Nomination Paper”) are false.

23
24 33. Defendant RUSSELL will not have legally resided in Arizona for five years –
25 let alone seven – by the time she would, if elected, assume office in 2021; therefore, she is not
26 a qualified candidate and cannot have her name printed on the ballot.

1 **III. COUNT TWO – FRAUD.**

2 34. This is a claim for fraud brought by the Plaintiff. The allegations of the
3 foregoing paragraphs 1 through 33 are hereby incorporated by reference.

4 35. On or about April 6, 2020, Defendant RUSSELL signed and filed or caused to
5 be filed with Defendant MARRA and/or her agent at the Cochise County Elections
6 Department in Bisbee, AZ, her Nomination Paper (EXHIBIT 9), in which she unequivocally
7 declares herself to be “a qualified elector” and “candidate” for “the office of Superior Court,
8 Division V, at the [November 3rd, 2020] General Election.” (*Id.*)

9 36. Defendant RUSSELL specifically affirms, under penalty of perjury, that she
10 “will have been a citizen of Arizona for 7 years before [her] election,” that she has “resided in
11 Cochise County for 7 years and in [its] precinct 32 for 7 years before [her] election,” that she
12 “will be qualified at the time of election to hold the office” sought, and that all of this and
13 other information on the Nomination Paper “is true and correct.” (*Id.*)

14 37. Defendant MARRA or her agent or employee time-stamped the Nomination
15 Paper and subsequently posted it on the Cochise County Elections Department’s Official
16 Website for Candidates,
17 <https://www.cochise.az.gov/sites/default/files/elections/russell%20nomination.pdf>; it has been
18 viewed in Cochise County numerous times by people who have no reason but to believe the
19 information contained within it, and to rely upon that information.

20 38. Defendant RUSSELL’s declarations falsely claim she will be “qualified at the
21 time of election to hold the office” sought; and have “7 years” of Arizona citizenship, “7
22 years” of Cochise County residency, and “7 years” of precinct 32 residency. (*Id.*) And on
23 information and belief, this was intentional. It was not due to mistake or a failure at math.
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1 39. In a separate but possibly related incident on August 21, 2017, and upon
2 information and belief, Defendant RUSSELL intentionally attempted to conceal the place of
3 her fixed habitation, misleading her social media followers into thinking that she lived in
4 Sierra Vista in April of 2014, when she did not. With over three years' worth of pre-
5 meditation, she retroactively "added" a post to that 2014 date, superficially and falsely
6 showing that she "Lives in" Sierra Vista, AZ, in 2014, (see EXHIBITS 10 and 11), as opposed
7 to visited there. The GIS-type tracker of her page had elsewhere clarified that she had only
8 "visited" there, i.e., on information and belief, her "visit" had been automatically "geo tagged"
9 to show what actually her still-lives-in-Georgia status was (see EXHIBIT 12, showing she had
10 visited AZ in April 2014).
11

12
13 40. A different and evidently contemporaneous 2014 post to her Facebook
14 followers at the end of that same visit to Sierra Vista supports the un-doctored, true version of
15 the story (EXHIBIT 13, "Finally back in ATL!"), as does her continuing to vote in Georgia
16 through May of 2016. (EXHIBIT 1).
17

18 41. Incidentally, the "geo tag" on many of her social media posts, i.e., the user's
19 GPS-type location that logs a place name to the right of the date on posts when a user allows/
20 "turns on" such tracking, further demonstrates and supports the theory that she lived in
21 Georgia at the time for residency purposes. For example, her March 18, 2016 selfies are
22 tagged "Dunwoody, GA." (EXHIBIT 14.) This Dunwoody, Atlanta and general Georgia
23 theme dominates her posts from that era, with or without "geo tagging." (EXHIBIT 15.)
24

25 42. On information and belief, Defendant RUSSELL's self-identifying as an
26 attorney who can attest that she's lived in Arizona longer than she has, and can buck the rules
27 wherever as much as she wants, is no mistake. It is her brand. She is not shy about amassing
28

1 and discharging phony bragging rights (in this case about all-things-local and lawyerly). This
2 trait is sharply coupled with her knee-jerk, misguided put downs of others, including Plaintiff,
3 (see, e.g., EXHIBIT 23 "...I've been here 6 years and never heard of her or seen her in
4 court..."), and failures to acknowledge an objective reality. Her repeated efforts to demean
5 and misstate the work of judges and others is legendary – not to mention caustic, crooked and
6 cringeworthy. (See EXHIBIT 24, which speaks for itself).

8 43. To register or re-register to vote in Georgia, on paper or online through
9 RegistertoVote.sos.ga.gov/GAOLVR, one must first "swear or affirm that" one "reside[s]" in
10 "GA" and is "eligible to vote in GA;" one must provide "proof of residence," e.g., a GA
11 driver's license, utility bill, bank records; and one is warned with a bold type "**WARNING**"
12 that it is "**a felony**" to "**not possess the qualifications required by law**" to vote. (EXHIBIT
13 16, GA voter registration form, which cites O.C.G.A. § 21-2-561)(emphasis in original).

15 44. To register or re-register to vote in AZ, one must similarly show oneself to "**be**
16 **a resident** of Arizona," (EXHIBIT 17, top half of AZ form)(emphasis in original), "swear or
17 affirm that the... information [required on the registration form] is true," including [a]ddress
18 where you live (EXHIBIT 18, bottom half)(emphasis in original). If attempting to register
19 online through ServiceArizona, one must additionally first check this box: "I am a resident of
20 Arizona." (EXHIBIT 19). Given her circumstances, she could have registered to vote in
21 Arizona, but she chose not to. She lived in and exercised her citizenship rights in Georgia.

23 45. On information and belief, on or about September 1st, 2020, Defendant
24 RUSSELL admitted to reporter Terri Jo Neff that she had voted in Georgia in May of 2016.
25 Plaintiff may call Ms. Neff as a witness in this case.
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1 46. On information and belief, Defendant RUSSELL went further, however,
2 claiming she had moved here to AZ two years before voting in GA in May 2016; however,
3 that is untrue, as shown by her written comments in, e.g., late 2015 which indicate a *future*
4 intention to move to AZ, not a completed or past act. (Exhibit 20, "...Glad I am moving to
5 AZ!!!" on 11-20-15).

7 47. On information and belief, Defendant RUSSELL also explained to the reporter
8 that she was "too busy" to change her voter registration during her first 2 years in Arizona,
9 which is probably untrue. (See, e.g., EXHIBIT 14).

10 48. Prior to Friday night, August 28th, 2020, Plaintiff did not know and had no
11 reason to know or suspect that Defendant RUSSELL had voted in Georgia in 2016.

13 49. Plaintiff is not a Facebook "friend" of Defendant RUSSELL's, nor has she
14 sought out or seen Defendant RUSSELL's social media posts other than those that have been
15 sent to her or that Defendant RUSSELL trolled Plaintiff with on Plaintiff's own campaign
16 page. So the soonest that Plaintiff could have known about Defendant RUSSELL's Georgia
17 residency through the beginning of 2016 was on the night of Friday, August 28th, 2020, when
18 a mutual friend brought it to Plaintiff's attention.

20 50. At dawn Monday, August 31st, 2020, and after many unsuccessful efforts to
21 reach GA officials to confirm the matter, Plaintiff confirmed that Defendant RUSSELL had
22 not registered to vote in Arizona until just prior to the General Election of 2016.

24 51. At 3:32 A.M., Tuesday, September 1st, and as a matter of courtesy, Plaintiff
25 emailed Defendant RUSSELL and her husband to give them a heads-up about what Plaintiff
26 had learned, the gravity of the situation, and to gently suggest that Defendant RUSSELL

1 consider an option other than staying in the race, should she so choose, as it might spare her
2 undue frustration.

3 52. After giving Defendant RUSSELL two full business days for that
4 consideration, though, Plaintiff was sent another post by a mutual friend, and realized that less
5 time for consideration was needed (see EXHIBIT 21).
6

7 53. The statute of limitations in a fraud case begins to run when the plaintiff by
8 reasonable diligence could have learned of the fraud, whether or not he or she actually learned
9 of it then or not. In this case, Plaintiff could not have learned of this fraud prior to Friday
10 night, August 28th, 2020. That was when images of Defendant RUSSELL's "private" social
11 media posts were provided to her. Plaintiff will call one or both of the individuals responsible
12 for sending them, and there will be testimony to lay the foundation, i.e., first-hand knowledge
13 that the posts originated from Defendant RUSSELL's social media page(s).
14

15 54. The fraud alleged here implicates many statutes about fraud and forgery,
16 including *but not limited to* A.R.S. §13-2002(A)(3), i.e., presenting an instrument containing
17 false information.
18

19 55. Defendant RUSSELL's intentionally false statements on official and unofficial
20 platforms described herein have already been viewed and relied on by numerous people from
21 Cochise County and elsewhere; they are available to viewers all over the world.
22

23 56. A candidate's Nomination Paper must comport with A.R.S. § 16-311(D), i.e.,
24 actually "include facts sufficient to show that...[she] will be qualified at the time of election
25 to hold the office" sought.

26 57. Here, the Nomination Paper that was filed on behalf of Defendant RUSSELL's
27 candidacy is demonstrably false by reasons set forth above, and as will be further
28

1 demonstrated to this Court at the hearing on the Order to Show Cause. Therefore, it cannot
2 comport with this legal requirement.

3 58. A.R.S. § 16-311(D) can be considered an express, non-technical mandate, so
4 even in the absence of Plaintiff alleging and proving fraud in court, if that statute was
5 violated, our AZ Supreme Court has determined that any ballots ultimately cast in reliance on
6 its violation arguably ought to be invalidated. *See, e.g., Miller v. Picacho Elementary School*
7 *Dist. No. 33*, 877 P.2d 277, 279, 179 Ariz. 178 (Ariz. 1994)(holding that “a showing of fraud
8 is not a necessary condition to invalidate absentee balloting. It is sufficient that an express
9 non-technical statute was violated, and ballots cast in violation of the statute affected the
10 election.”)
11

12
13 59. Having to include true and correct facts is not discriminatory, irrational or
14 overly burdensome. Rather, it is a reasonable restriction. Our state’s regulatory interests over
15 nonfraudulent candidates and fair elections are certainly sufficient and important enough to
16 justify this restriction on candidate rights, so long as those interests and the restriction are
17 rationally related to one another. *See, e.g., Graham v. Tamburri*, 240 Ariz. 126, 377 P.3d 323
18 (Ariz. 2016)(citing *Burdick v. Takushi*, 504 U.S. 428, 434, 112 S.Ct. 2059, 119 L.Ed.2d 245
19 (1992) *Bullock v. Carter*, 405 U.S. 134, 142, 92 S.Ct. 849, 31 L.Ed.2d 92 (1972)).
20

21 60. In the event that, given the tight timelines and fraud that shall be proven, this
22 Court would feel more comfortable making a decision about this case on equitable estoppel
23 grounds, it could do so. Defendant MARRA has “refused” to provide relief in this case,
24 stating (and rightly so) that, as a filing officer, she has no legal authority to remove a
25 candidate from the ballot absent court order.
26

27
28 **IV. INJUNCTIVE RELIEF.**

1 61. This is a claim for injunctive relief. The allegations of the foregoing paragraphs 1
2 through 59 are hereby incorporated by reference.
3

4 62. Plaintiff respectfully moves this Court for an Order (i) directing the
5 Defendants to show cause why Plaintiff should not be granted the relief sought herein, and (ii)
6 setting a hearing within seven days. Plaintiff requests the hearing be set as soon as possible in
7 order to resolve these matters so that all the parties, the election officials, and the citizens of
8 Cochise County can know who the qualifying candidates for nomination for Judge of Superior
9 Court, Division 5 will be.
10

11 63. Defendant MARRA has indicated to Plaintiff that her deadline date for most
12 comfortably sending ballots to the printer is Wednesday, September 8th.
13

14 64. A Court should grant a preliminary injunction when the Plaintiff establishes:
15 “(1) there is a real threat of irreparable injury not remediable by damages; (2) the threatened
16 harm to the plaintiffs weighs more heavily in the balance than the actual injury to the
17 defendants; (3) the plaintiffs are likely to succeed in the trial on the merits and (4) public
18 policy favors the injunction.” See, e.g., *Burton v. Celentano*, 134 Ariz. 594, 595, 658 P.2d
19 247, 248 (Ct. App. 1982).
20

21 65. In Plaintiff’s case, all four factors weigh in Plaintiff’s favor. There can be no
22 real damages in a case like this, so without damages to begin with, there can be no
23 remediation by them. Plaintiff has no adequate remedy or relief at law or in equity other than
24 the relief prayed for herein. This matter is ill-suited for a traditional civil action because all
25 parties have an interest in seeing this matter resolved quickly. In addition, the only threat of
26 harm to Defendant RUSSELL is that she will be disqualified from the ballot, which is a just
27 conclusion if it is proven that she lacks residency.
28

66. Plaintiff is also likely to prevail on the merits. And due to their time-sensitive nature, election law cases involving nomination challenges are almost always decided in this way. A.R.S. § 16-351 clearly contemplates a challenge based on candidate residency.

67. Finally, the public interest supports injunctive relief here. In short, election officials and voters need to know who is eligible to have their name printed on the General Election ballot so that ballots can be printed in a timely manner, and the public is not blindsided by having someone on the ballot who repeatedly considers herself above the law. All of the parties have an interest in a speedy resolution.

68. No previous Complaint/Application by Plaintiff has been made for the relief sought or for the Order to Show Cause, or for any similar order or relief.

69. Plaintiff requests leave and reserves the right to submit upon the argument and hearing of this application additional supplemental proof by way of affidavits, documentary proof and testimony to substantiate the allegations contained herein.

Prayer for Relief

WHEREFORE, the Plaintiff respectfully requests that the Court award to her the following relief:

A. For a declaration from this Court that Defendant RUSSELL is ineligible to have her name printed on the 2020 General Election ballot.

B. For an order enjoining Defendants MARRA, STEVENS, and BOS from printing Defendant RUSSELL's name on the 2020 General Election ballot.

C. For an award of taxable costs incurred in this cause of action.

D. For any such other relief as may be just and appropriate.

1 E. For Findings of Fact and Conclusions of Law.

2 Respectfully submitted on this 3rd day of September, 2020.

3
4 
5 Anne Carl
6 Attorney Pro Se

7 On this ____ day of September, 2020, conformed copies of the
8 (1) Summons x 3, (2) Verified Complaint and Application
for Preliminary Injunction, and (3) Order to show cause
were served, pursuant to A.R.S. §16-351(D) on:

9 Sandy Russell in care of her agent to receive service of process
10 And
David Stevens, the Cochise County Recorder, and
11 The Cochise County Board of Supervisors via
Lisa Marra, Director, Cochise County Department of Elections
1415 Melody Lane, Building E;
Bisbee, AZ 85603
12 By: ____

13
14
15 **VERIFICATION**

16 Anne Carl, a Plaintiff in this cause of action, hereby states the following under oath:

- 17 1. My name is Anne Carl and I am a Plaintiff in this cause of action.
- 18 2. I have read the foregoing Complaint, with the accompanying Exhibits, and know
- 19 the contents of this Complaint and Exhibits.
- 20 3. The statements in this Complaint are true, to the best of my knowledge, except
- 21 for those matters therein which are stated on information and belief, and as to
- 22 those matters, I believe the Complaint to be true.
- 23 4. I have read the foregoing statements and they are true and correct.
- 24

25 Dated: Sept 3rd, 2020

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27 Anne Carl
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County of Cochise
State of Arizona

Anne Carl appeared before me, the undersigned Notary Public, and signed this
Verification on this 3rd day of September, 2020.



Notary Public

Elizabeth Bernstein

EXHIBIT 1



Sandy Russell

May 20, 2016 · Chamblee, GA ·

I just finished my early voting in Dekalb county Georgia. I am amazed at how many judges are running unopposed. I could not bring myself to vote for any incumbent. So I wrote in Lloyd N. Bell (against hydrick), Nelson Tyrone, Dan DeWoskin, Alex Susor, E. Jay Abt and Kris Alise.
I wrote in John David Hadden for the court of appeals.



7

12 Comments



Like



Comment

[View 6 more comments](#)



Sandy Russell I don't even think LLoyd lives in Dekalb. Lol!

Like · Reply · 4y



1

EXHIBIT 2



**Cochise County
Recorder's Office**

Public Programs...Personal Service
www.cochise.az.gov

DAVID W. STEVENS
Recorder

HEATHER LOPEZ
Chief Deputy

September 1, 2020

Dear Anne Carl,

Per your request, attached are certified copies of the voter registration records regarding Sandra Finch Russell.

Thank you,

Heather Lopez
Chief Deputy Recorder
Cochise County Recorder
1415 Melody Ln Bldg B
Bisbee, AZ 85603

1415 Melody Lane, Building B
Bisbee, Arizona 85603
520-432-8350 recording
520-432-8368 fax
520-432-8358 voter registration
recorder@cochise.az.gov

AVID ID 25330403 VRAZ ID 0200137612 County Cochise
RUSSELL, SANDRA FINCH

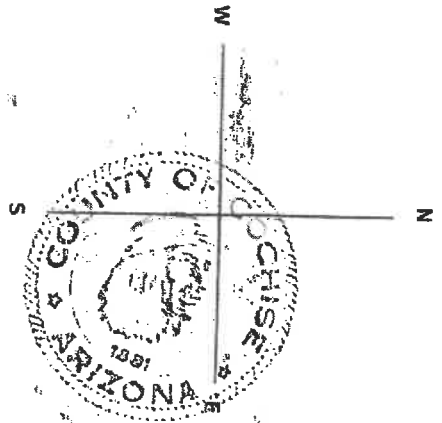
Party PARTY NOT DESIGNATED
DOB [REDACTED] 1973 (Age 47)
Precinct SV COUNTRY CLUB

Status ACTIVE
Status Reason VALID REGISTRATION
Precinct Part 3201

Registrant Info	Polling Locations	Validations	Voting History	Activity	Attachments	Correspondence	Early Voting
Provisional Voting							

Election Date	Election Type	Election Name	County	Vote Type	Voted Where	Vote Party/Reason	Vote Date
08/04/2020	Primary	PRIMARY 2020	Cochise	Early		REP	08/04/2020
11/05/2018	General	2018 GENERAL ELECTION	Cochise	Absentee			11/05/2018
08/28/2018	Primary	2018 PRIMARY ELECTION	Cochise	Absentee		REP	08/28/2018
11/09/2016	General	2016 GENERAL ELECTION	Cochise	Absentee			11/09/2016
					Total: 4		



[1] Permanent Early Voting List - Early Ballot (see instructions above)				BOX FOR OFFICE USE ONLY	
☒ YES, I want to automatically receive an early ballot for each election for which I am eligible. ☐ NO, I DO NOT want to automatically receive an early ballot. I understand CHECKING THIS BOX will remove my name from the list if it was previously included.					
[2] Last Name RUSSELL		First Name SANDRA		Middle Name FINCH	Jr./Sr./III
[3] Address where you live - If no street address, describe residence location using mileage, cross streets, parcel #, subdivision name and lot, or landmarks. Do not use post office box or business address. Draw a map below if located in rural area. 3466 CASPER DR					
[5] City SIERRA VISTA	[6] ZIP 85650 - 6681	[7] Address where you get your mail, if mail is not delivered to your home			
[8] Last four digits of Social Security Number [REDACTED]		[9] AZ Driver License Number or AZ Nonoperating License Number [REDACTED]		[10] Optional Tribal Identification Number	
[12] Birth Date (MM/DD/YYYY) 1/19/73		[13] State or Country of Birth		[11] Alien Registration Number	
[17] If you were registered to vote in another state, list former address including county and state.		[14] Party Preference ☐ Republican ☒ Democratic ☐ Other		[15] Telephone number	
[20] Are you willing to work at a polling place on election day? ☐ Yes ☒ No		[21] E-mail address		[18] List former name (if applicable)	
[22] • Are you a citizen of the United States of America? • Will you be 18 years of age on or before election day? Yes ☒ No ☐ If you checked 'No' to either one of these questions, do not submit this form.		[16] Occupation		[19] Father's name or mother's maiden name	
VOTER DECLARATION - By signing below, I swear or affirm that the above information is true, that I am a RESIDENT of Arizona, I am NOT a convicted FELON or my civil rights are restored, and I have NOT been adjudicated INCOMPETENT.					
[23] If no street address draw a map here: 					
SIGN HERE [REDACTED]		DATE 10/06/2016		DATE	
[24] If you are unable to sign the form, the form can be completed at your direction. The person who assisted you must sign here. SIGNATURE OF PERSON ASSISTING DATE					

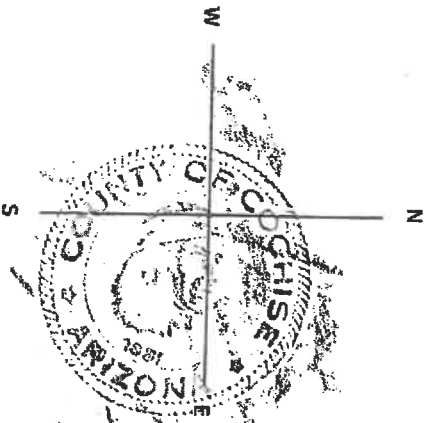
[1] Permanent Early Voting List - Early Ballot (see instructions above)				BOX FOR OFFICE USE ONLY	
☒ YES, I want to automatically receive an early ballot for each election for which I am eligible. ☐ NO, I DO NOT want to automatically receive an early ballot. I understand CHECKING THIS BOX will remove my name from the list if it was previously included.					
[2] Last Name RUSSELL		First Name SANDRA		Middle Name FINCH	
[3] Address where you live - If no street address, describe residence location using mileage, cross streets, parcel #, subdivision name and lot, or landmarks. Do not use post office box or business address. Draw a map below if located in rural area. 3466 CASPER DR		[4] Apt./Unit/Space			
[5] City SIERRA VISTA	[6] Zip 85650 - 6681	[7] Address where you get your mail. If mail is not delivered to your home			
[8] Last four digits of Social Security Number [REDACTED]		[9] AZ Driver License Number or AZ Nonoperating License Number [REDACTED]		[10] Optional Tribal Identification Number	
[12] Birth Date (MM/DD/YYYY) 1973		[13] State or Country of Birth [REDACTED]		[11] Alien Registration Number	
[17] If you were registered to vote in another state, list former address including county and state.		[14] Party Preference ☐ Republican ☐ Democratic ☒ Other NO PARTY PREF...		[15] Telephone number 706-461-1760	
[20] Are you willing to work at a polling place on election day? ☐ Yes ☒ No		[21] E-mail address [REDACTED]		[18] List former name (if applicable)	
[22] • Are you a citizen of the United States of America? • Will you be 18 years of age on or before election day? VOTER DECLARATION - By signing below, I swear or affirm that the above information is true, that I am a RESIDENT of Arizona, I am NOT a convicted FELON or my civil rights are restored, and I have NOT been adjudicated INCOMPETENT.		Yes ☒ No ☐ Yes ☒ No ☐ If you checked 'No' to either one of these questions, do not submit this form.		[16] Occupation PROF. ATTORNEYS	
[23] If no street address draw a map here: 					
SIGN HERE [REDACTED]		DATE 07/17/2018			
[24] If you are unable to sign the form, the form can be completed at your direction. The person who assisted you must sign here. SIGNATURE OF PERSON ASSISTING DATE					

EXHIBIT 3



Sandy Russell For Superior Court Judge, Division 5

July 27 · 🌐

...

I chose to live in Sierra Vista after I married my husband who had been a part of this community for over 20 years. When I met him, I had a successful law practice in Atlanta. I owned my own building, had 2 lawyers and support staff working for me. I could have easily stayed in Atlanta.

But I grew up in rural America and I was tired of the traffic and fast pace of city life. So when it came time for us to decide which one of us should move, we decided it would be me. I wanted my daughter to grow up in the country like I did.

We love our life here. Valyn loves her school, her friends and her teachers. She likes taking horse riding lessons and going to Rodeos.

She also gets a taste of city life when she visits her dad in Atlanta.

This year will be a difficult year. But we will get through it!

#LivingACountryLife

#NoRegrets